

HOUSE No. 1606

The Commonwealth of Massachusetts

PRESENTED BY:

Michael S. Chaisson

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to law enforcement access to prescription monitoring data.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Michael S. Chaisson</i>	<i>1st Bristol</i>	<i>1/14/2025</i>

HOUSE No. 1606

By Representative Chaisson of Foxborough, a petition (accompanied by bill, House, No. 1606) of Michael S. Chaisson relative to access to prescription monitoring data by law enforcement. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1394 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to law enforcement access to prescription monitoring data.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Clause (4) of subsection (f) of Section 24A of Chapter 94C of the General
2 Laws, as appearing in the 2022 Official Edition, is hereby amended by striking out the words
3 “and accompanied by a probable cause warrant issued pursuant to chapter 276”.

4 SECTION 2. Said subsection (f) of said Section 24A of said Chapter 94C is hereby
5 further amended by striking out clause (6), as appearing in the 2022 Official Edition, and
6 inserting in place thereof the following clause:-

7 (6) personnel of: (A) the United States attorney or a federal agency; provided, however,
8 that the data request is made pursuant to clause (4) or federal law; (B) the office of the attorney
9 general provided, however, that the data request is in connection with a bona fide specific

10 controlled substance or additional drug-related investigation; or (C) a district attorney's office;
11 provided, however, that the data request is in connection with a bona fide specific controlled
12 substance or additional drug-related investigation;